

SUMMARY STATEMENT

Leriget v. The Roman Catholic Diocese of Boise and St. Mary's Catholic Church

Docket No. 52551

This case concerns allegations of clerical sexual abuse against a minor dating back almost sixty years. Peter Steven Leriget alleges that he was sexually assaulted by Father Patrick O'Sullivan in his family home in 1968 when he was nine years old. At the time, Father O'Sullivan was a priest at St. Mary's Catholic Church in Moscow, Idaho, where Leriget's family attended church and he attended school. Leriget's parents often had Father O'Sullivan over for dinner and drinking. On one occasion, they allowed Father O'Sullivan to babysit their son, which is when the alleged abuse occurred. Father O'Sullivan passed away in 1993. Leriget never reported this incident to anyone until 2019, when he disclosed it to his therapist. In 2021, Leriget filed suit against the Roman Catholic Diocese of Boise ("Diocese of Boise") and St. Mary's Catholic Church ("St. Mary's") (collectively "the Diocese"), claiming damages under the theory of constructive fraud. The district court granted summary judgment in favor of the Diocese.

On appeal to the Idaho Supreme Court, Leriget asserts that there was a relationship of trust and confidence between him and the Diocese sufficient to support a constructive fraud claim, due to the Diocese's spiritual authority over him and his enrollment as a student at St. Mary's. He argues that the Diocese endorsed Father O'Sullivan as a trustworthy figure with spiritual authority, which created a power dynamic that Father O'Sullivan took advantage of to abuse Leriget. He also contends that the Respondents knew of the history of sexual abuse by certain priests within the Catholic Church but concealed the dangers of pedophilic priests.

The Idaho Supreme Court affirmed the district court's dismissal of the case, holding that the record does not establish that the necessary relationship of trust and confidence existed between Leriget and the Diocese to maintain a constructive fraud claim. The Supreme Court explained that for a relationship of trust and confidence to exist between a church and its parishioner, there must be facts which establish a relationship unique from the church's relationship with its parishioners in general. Here, the Court agreed with the district court's conclusion that Leriget did not allege any facts which established his relationship went beyond general membership in the Diocese. The Court also rejected Leriget's argument that there was a relationship of trust and confidence based solely on his attendance as a student at St. Mary's. It discussed the lack of evidence in the record that Father O'Sullivan had any involvement in Leriget's schooling or that the Diocese was aware that Father O'Sullivan was babysitting him in his family home.

The Idaho Supreme Court also rejected Leriget's contention that the Diocese committed constructive fraud by omission of a material fact. It explained that the record did not establish that the Diocese had any knowledge of Father O'Sullivan committing sexual abuse against Leriget or anyone else. Further, any potential knowledge of pedophilic priests in the Catholic Church in general lacked the specificity necessary for a duty to disclose to arise in this case. Thus, the Court held that the district court's grant of summary judgment was proper.

******This summary constitutes no part of the opinion of the Court, but has been prepared by court staff for the convenience of the public.******